

58	Aplizar vs. Bryan 23-01346664	Motion for Terminating Sanctions Defendants Aelee Bryan and Randal Bryan, erroneously sued and served as Randall Bryan, moves for terminating sanctions and an order striking the Complaint and dismissing the action of Plaintiff Jose Miguel Alpizar with prejudice. Defendants also request monetary sanctions in the amount of \$1,079.48. The motion is DENIED in part and GRANTED in part. On November 21, 2025, the Court granted Defendant Aelee Bryan’s unopposed Motion to Compel Plaintiff Jose Miguel Alpizar to provide a verified, full, and complete responses to Defendant’s Supplemental Discovery. (ROA 88 [11/21/25 Minute Order].) The Court ordered Plaintiff to provide a verified response without objections to Defendant’s supplemental discovery within fifteen days (15) of service of the ruling. (<i>Id.</i>) The Court further ordered Plaintiff to pay monetary sanctions to Defendant in the amount of \$780.00. (<i>Id.</i>) On November 24, 2025, Defendant filed Notice of Ruling that was served on Plaintiff via U.S. Mail. (ROA 91.) Plaintiff has not served any responses to the discovery or paid the ordered sanctions. (Barcelos-Pettit Decl. ¶ 5.) The discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination. (<i>Doppes v. Bentley Motors, Inc.</i> (2009) 174 Cal.App.4th 967, 992.) If a lesser sanction fails to curb misuse, a greater sanction is warranted: continuing misuses of the discovery process warrant incrementally harsher sanctions until the sanction is reached that will curb the abuse. (<i>Id.</i>) The court finds that the record here does not support terminating sanctions. Defendants’ motion does not set forth substantial evidence of Plaintiff’s continuous obstructive and willful conduct in the discovery process warranting the ultimate sanction. Plaintiff shall fully comply with the court’s November 21, 2025 Order. Plaintiff is ordered to serve verified responses, without objection, to the outstanding Supplemental Interrogatory and Supplemental Demand for Production within 30 calendar days. The court warns Plaintiff Jose Miguel Alpiza that Plaintiff’s failure to comply with his discovery obligations may result in more severe sanctions, including terminating sanctions. Defendants Aelee Bryan and Randal Bryan to give notice.
59	Palma vs. South Orange County Community College District 21-01234121	Motion to Strike or Tax Costs Plaintiff William Palma’s motion to strike or tax costs claimed by Defendant South Orange County Community College District (“Defendant” or “SOCCCD”) is GRANTED IN PART and DENIED IN PART. On 10/9/25, Judgment was entered in favor of Defendant and against Plaintiff. On 10/24/25, Defendant filed a Memo. Of Costs in the amount of \$1,575.02. (ROA 454) The instant motion was filed on 11/10/25. (ROA 458.)

		It is undisputed that Defendant SOCCCD was prevailing party in this matter. It is also undisputed that Plaintiff's motion is timely. Whether a party to litigation is entitled to recover costs is governed by Code of Civ. Proc. § 1032, which provides, in subdivision (b), that "[e]xcept as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." The costs that the prevailing party gets under Code of Civ. Proc. § 1032, are those enumerated in Code of Civ. Proc. § 1033.5 (which is the standard costs statute.) It enumerates the costs that are allowed to the prevailing party as a matter of right (subd.(a)), the costs that are not allowed unless they are authorized by some other law (subd.(b).) and a catch-call provision for other items, i.e. discretionary costs, so long as they are reasonable in amount (subd.(c).) Any allowable cost, whether expressly allowed or allowed in the court's discretion, may only be recovered if it is both reasonable in amount and was reasonably necessary to the conduct of the litigation, as opposed to merely convenient or beneficial to its preparation. (Code Civ. Proc., § 1033.5, subd. (c)(2)-(3); see <i>Bender v. County of Los Angeles</i> (2013) 217 Cal.App.4th 968, 989-990 (<i>Bender</i>).) Trial courts have no authority to reduce allowable costs based on considerations other than necessity or reasonableness of the costs. (<i>Nelson v. Anderson</i> (1999) 72 Cal.App.4th 111, 129-130 (<i>Nelson</i>).) A court has discretion to allow or disallow requested costs not enumerated in subdivision (a). Code Civ. Proc., § 1033.5(c) (4). Generally, "the burden is on the objecting party to show [costs] to be unnecessary or unreasonable." (<i>Nelson</i> at 131.) "If the items in a cost memorandum appear proper, the verified memorandum is prima facie evidence the expenses were necessarily incurred by the defendant." (<i>Benach v. County of Los Angeles</i> (2007) 149 Cal.App.4th 836, 858.) "To controvert this evidence, the burden is on the objecting party to present evidence showing the contrary." (<i>Whatley-Miller v. Cooper</i> (2013) 212 Cal.App.4th 1103, 1115 (emphasis in original).) "If items on their face appear to be proper charges, the verified memorandum of costs is prima facie evidence of their propriety, and the burden is on the party seeking to tax costs to show they were not reasonable or necessary." (<i>Jones v. Dumrichob</i> (1998) 63 Cal.App.4th 1258, 1266.) Once the opposing party makes such a showing, in support of a motion to tax costs, the challenged items are put in issue and the burden shifts back to the party claiming them as costs. (<i>Ibid.</i>) But conclusory assertions alone are not enough to cause this shift to happen. "[I]t is not enough for the losing party to attack submitted costs by arguing that he thinks the costs were not necessary or reasonable. Rather, the losing party has the burden to present evidence and prove that the claimed costs are not recoverable." (<i>Seever v. Copley Press, Inc.</i> (2006) 141 Cal.App.4th 1550, 1557.) However, "[w]here costs are not expressly allowed by the statute, the burden is on the party claiming the costs to show that the charges were reasonable and necessary." (<i>Foothill-De Anza Community College Dist. v. Emerich</i> (2007) 158 Cal.App.4th 11, 29.) "Whether a cost item was reasonably necessary to the litigation presents a question of fact for the trial court and its decision is reviewed for abuse of discretion." (<i>Ladas v. California State Auto. Assn.</i> (1993) 19 Cal.App.4th 761, 774.)
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Here, it is undisputed that Defendant was prevailing party in this action. Plaintiff moves to strike all costs or, alternatively, reduce the amount of claimed costs to zero on the following grounds:

- (a) The litigation was unnecessarily prolonged by Defendants' seven-month absence and delayed filing of a summary judgment motion that contained no new facts.
- (b) No discovery was conducted, and the same arguments supporting summary judgment existed in the first year of the case, making all litigation after ROA 77 unnecessary.
- (c) Multiple court and clerk errors, including the prejudicial rejection of Plaintiff's filings for minor errors while accepting Defendants' error-filled filings, burdened litigation and created avoidable legal work.
- (d) Plaintiff's requests for ADA accommodations were ignored; and
- (e) Taxing costs against a civil rights litigant under these circumstances would chill constitutional claims and is unjust under Code of Civil Procedure §§ 1032, 1033.5 and case law.
- (f) The action is a matter of public interest affecting over 50,000 students and the public, and taxing costs under these circumstances would chill the vindication of constitutional rights.

The litigation was unnecessarily prolonged by Defendants' seven-month absence and delayed filing of a summary judgment motion that contained no new facts

First, Plaintiff contends that Defendant's motion for summary judgment could have been filed immediately, trial did not need to be continued, no discovery was exchanged and the litigation produced no new facts after 9/30/22. Thus, everything after 11/4/22 was avoidable and was not reasonably necessary.

It is undisputed that Defendant was prevailing party and therefore entitled to seek costs. This means that the prevailing party is entitled to all of its costs unless another statute provides otherwise. (See *Crib Retaining Walls, Inc. v. NBS/Lowry, Inc.* (1996) 47 Cal.App.4th 886, 890.) Absent such statutory authority, the court has no discretion to deny costs to the prevailing party. (Ibid.)

Code of Civ. Proc. 1033 enumerates allowable costs and costs which are not allowable, and restricts allowable costs to those reasonably necessary to the conduct of the litigation. Plaintiff fails to present any statutory authority for reducing allowable costs for any of the reasons advanced by Plaintiff. "A court should be cautious in engrafting exceptions onto the clear language of Code of Civil Procedure section 1032." (*Great Western Bank v. Converse Consultants, Inc.* (1997) 58 Cal.App.4th 609, 614.) Nor should it " 'read into the statute allowing costs a restriction which has not been placed there....' " [Citation.] (*Crib Retaining Walls, Inc. v. NBS/Lowry, Inc.* supra, 47 Cal.App.4th at p. 890.)

Plaintiff also fails to show how the length of this case increased the cost of litigation, especially where Plaintiff contends there was at least one long stretch where Defendant "disappeared" and therefore nothing was happening. Moreover, Plaintiff fails to show how the length of this case equates to Defendant not being entitled to *any* costs, as asserted by Plaintiff. Defendant

	was entitled to litigate the case as counsel saw fit. The motion for summary judgment was timely filed. Plaintiff cites <i>Chavez v. City of Los Angeles</i> (2010) 47 Cal.4th 970, 987: Court may deny costs where litigation was unnecessary or unjust. <i>Nelson v. Anderson</i> (1999) 72 Cal.App.4th 111: Costs may be denied if the prevailing party unreasonably prolonged litigation. <i>Chavez v. City of Los Angeles</i> (2010) 47 Cal.4th 970, 987 is distinguishable from the instant matter. In <i>Chavez</i>, the Court considered whether the trial court abused its discretion in denying a plaintiff's costs in an FEHA action where the matter should have been brought as a limited civil case and whether there was an irreconcilable conflict between section 1033(a) and the FEHA's attorney fee provision. This matter does not involve FEHA claims nor an analysis of whether Plaintiff should have brought his claims in limited jurisdiction. Moreover, as opposed to the <i>Chavez</i> matter, Plaintiff did not prevail in this matter. <i>Nelson v. Anderson</i> (1999) 72 Cal.App.4th 111 does not state that costs may be denied if the prevailing party unreasonably prolonged litigation. In <i>Nelson</i>, the Court of Appeal reviewed whether the trial court abused its discretion when it gave an across-the-board reduction of costs based upon the number of plaintiffs, without regard for the reason the costs were incurred and whether they were necessary or reasonable. The appellate court also found the trial court abused its discretion in denying particular fees. "If items on their face appear to be proper charges, the verified memorandum of costs is prima facie evidence of their propriety, and the burden is on the party seeking to tax costs to show they were not reasonable or necessary." (<i>Jones v. Dumrichob</i> (1998) 63 Cal.App.4th 1258, 1266.) However, conclusory assertions alone are not enough to cause this shift to happen. "[I]t is not enough for the losing party to attack submitted costs by arguing that he thinks the costs were not necessary or reasonable. Rather, the losing party has the burden to present evidence and prove that the claimed costs are not recoverable." (<i>Seever v. Copley Press, Inc.</i> (2006) 141 Cal.App.4th 1550, 1557.) Because Plaintiff failed to meet this burden as he fails to present any evidence, the motion is DENIED on this ground. Notwithstanding the above, review of the claimed costs demonstrate that some fees are not recoverable. Pursuant to the opposition, the "other" fee of \$22.50 was incurred for document retrieval from the OCSC's website. "Where costs are not expressly allowed by the statute, the burden is on the party claiming the costs to show that the charges were reasonable and necessary." (<i>Foothill-De Anza Community College Dist. v. Emerich</i>, supra, 158 Cal.App.4th at p. 29.) Here, Defendant fails to show how this cost was reasonably necessary to the conduct of litigation and not just convenient or beneficial to its preparation. (Code Civ. Proc., § 1033.5, subd. (c)(2)-(3); see <i>Bender v. County of Los Angeles</i> (2013) 217 Cal.App.4th 968, 989-990.) Accordingly, the Court strikes these "other" costs in the amount of \$22.50. <u>Court-Issued Continuances and Oppositions' Delays Created Avoidable Costs</u> Plaintiff next argued that the Court's continuances and delayed ruling on motions to amend prolonged the case. Defendant's request for a trial continuance (based on allegations of threats, which had already been resolved
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		in criminal court) also prolonged the case. Thus, Plaintiff contends he should not be responsible for avoidable costs. But again, pursuant to the authority provided and discussed above, Plaintiff fails to meet his burden. Nevertheless, the Court exercises its discretion and strikes the “other” costs of \$22.50, as indicated above. <u>Judicial Errors, Threats, and Clerk Mistakes Created Unnecessary Work; Plaintiff’s Request for ADA Accommodations Were Ignored or Denied; Costs Should Be Denied to Avoid Chilling Constitutional Rights</u> None of these grounds are grounds upon which a Court can exercise its discretion to deny costs to Defendant SOCCCD. The prevailing party is entitled to all of its costs unless another statute provides otherwise. (See <i>Crib Retaining Walls, Inc. v. NBS/Lowry, Inc.</i>, supra, 47 Cal.App.4th at p. 890.) Absent such statutory authority, the court has no discretion to deny costs to the prevailing party. (Ibid.) Accordingly, the request to strike all costs on this ground is DENIED. But again, the Court strikes the “other” costs of \$22.50. <u>Total costs allowed: \$1,552.52 (\$1,575.02 – \$22.50)</u> Defendant to give notice.
60	Finnell vs. WC-Fullerton Ops, LLC 21-01233043	Motion for Termination of Sanctions NO TENTATIVE RULING – Parties to appear on Zoom or in-person at 10:00 AM.
61	Holler vs. The Horizons Community Association 21-01222398	Motion for Summary Judgment and/or Adjudication CONTINUED TO JUNE 4 TH , 2026 AT 10:00 AM
62	DFB Portal, LLC vs. Marco Fine Arts 23-01315041	Motion for Summary Judgment and/or Adjudication The Court is inclined to CONTINUE the Motion for Summary Judgment or Adjudication to 7/24/2026 at 10:00 AM, to allow briefing which addresses the appropriate procedure to resolve Defendants’ setoff defense and, specifically, whether consolidation of this action with <i>Marco Fine Arts, Inc. v. 240 Tech LLC</i> (2023-01317799) would more efficiently resolve the same; however, the Court requests counsel for both sides appear at the hearing, prepared to discuss these issues.